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ELUSIVE 8307, LLC, a California limited liability company, Plaintiff, vs. MEREK CANTERMAN, an individual, and as trustee of the MJ INNOVATIONS TRUST DATED FEBRUARY 6, 2011, et al.,

TENTATIVE RULING

As to the Underlying Action, the Motion for Attorney's Fees is GRANTED in part. The Court awards Defendant Merek Canterman a total of \$273,085.60 in attorney's fees against Plaintiff Elusive 8307, LLC.

As to the Appeal, Defendant Merek Canterman's Motion For Attorney's Fees is GRANTED in part. The Court awards a total of \$37,809.00 in attorney's fees against Plaintiff Elusive 8307, LLC.

Introduction

On August 28, 2018, Plaintiff Elusive 8307, LLC filed the Complaint in this action.

On July 2, 2021, the Court granted Defendant Merek Canterman's Motion for Judgment, and on August 31, 2021, the Court entered judgment in Canterman's favor.

On October 29, 2021, Canterman filed his initial Motion for Attorney's Fees incurred in the underlying action, seeking \$353,682, which the Court denied on February 9, 2022.

In April 2022, Canterman filed his Notice of Appeal from the denial of his fee motion.

On January 3, 2024, the Court of Appeal issued its opinion reversing the denial of fees, holding that Canterman established a right to attorney's fees as the prevailing party, remanding for a determination of the reasonableness of the fees, and awarding Canterman his costs on appeal.

On April 4, 2024, the remittitur issued.

On July 11, 2025, Canterman filed his Motion for Attorney's Fees Incurred on Appeal, seeking a total of \$45,810, consisting of: (1) \$38,010 for the appeal (126.7 hours at \$300/hour); and (2) \$7,800 for preparing the present motion (26 hours at

\$300/hour). On the same date, Canterman also refiled his initial Motion for Attorney's Fees incurred in the underlying action.

On June 25, 2026, Plaintiff Elusive 8307, LLC filed its opposition to the Motion for Fees.

On June 30, 2026, Plaintiff Elusive 8307, LLC filed its opposition to the Appeal Fees Motion.

On July 7 and 8, Canterman filed his replies.

Requests for Judicial Notice

In support of each motion, Canterman requests judicial notice of court records and recorded instruments, including the Judgment and the Order on the Motion for Judgment, the recorded 2004 Agreement, Elusive's Complaint, First Amended Complaint, and Second Amended Complaint, the appellate opinions and remittitur, and two attorney declarations concerning market rates filed in a related proceeding (the Thompson and Henning declarations).

These are proper subjects of judicial notice as records of a court of this state and as recorded documents whose existence and legal effect are not reasonably subject to dispute. (Evid. Code, § 452, subds. (d), (h).)

The requests are granted. Although the Court notices the existence and contents of these materials, not the truth of disputed matters asserted within them.

Legal Standard

"[A]s a general rule, attorney fees are not recoverable as costs unless they are authorized by statute or agreement." (People ex rel. Dept. of Corporations v. Speedee Oil Change Systems, Inc. (2007) 147 Cal.App.4th 424, 429.)

For contracts actions, "where the contract specifically provides that attorney's fees and costs, which are incurred to enforce the contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civ. Code § 1717(a).) "[T]he party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract." (Id.)

The lodestar method of calculation applies to a statutory award of attorney fees unless the statute provides another method. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1135.) "The determination of what constitutes a reasonable fee generally 'begins with the 'lodestar,' i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate....'" "[T]he lodestar is the basic fee for comparable legal services in the community; it may be adjusted by the court based on factors including, as relevant herein, (1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award...." (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.)

"In determining the lodestar amount, a prevailing party generally may not recover for work on causes of action on which the party was unsuccessful" except in some cases where the amounts are so intertwined that it would be impracticable to separate them out. (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal.App.4th 328, 342; Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 157.) " 'Attorneys fees need not be apportioned between distinct causes of action where plaintiff's various claims involve a common core of facts or are based on related legal theories.' " Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 159.) "[A]ttorney fees need not be reduced for work on unsuccessful claims if the claims 'are so intertwined that it would be impracticable, if not impossible, to separate the attorney's time into compensable and noncompensable units.'" (Mann v. Quality Old Time Service, Inc. (2006) 139 Cal. App. 4th 328, 342.)

In setting the hourly rate for an attorney fees award, courts are entitled to consider the rate of “fees customarily charged by that attorney and others in the community for similar work.” (Bihun v. AT&T Information Systems, Inc. (1993) 13 Cal. App. 4th 976, 997, overruled on other grounds by Lakin v. Watkins Associated Indus. (1993) 6 Cal. 4th 644, 664.) “A fee request that appears unreasonably inflated is a special circumstance permitting the trial court to reduce the award or deny one altogether.” (Chavez v. City of L.A. (2010) 47 Cal.4th 970, 990.)

A party may claim attorney's fees on appeal as required under a statute or contract but must also make such claims within 40 days after the remittitur. (Cal. Rules of Court, Rule 3.1702(c)(1).) Failure to follow the procedure results in loss of the right to costs, although the court has the power pursuant to Code of Civil Procedure § 473 to relieve the delay if failure to timely file was due to mistake, inadvertence, or excusable neglect. (Russell v. Trans Pacific Group (1993) 19 Cal.App.4th 1717, 1729; see also Robinson v. U-Haul Company of California (2016) 4 Cal.App.5th 304, 328.) However, the parties are permitted to extend the time for filing a motion for attorneys' fees by stipulation for an additional 60 days before the time has expired to file such a motion. (Cal. Rules of Court, Rule 3.1702(c)(2).)

As in the trial court, attorney fees on appeal are recoverable when authorized by statute or contract. (See Code Civ. Proc. § 1021, Civil Code § 1717, Cal. Rules of Court, Rule 3.1702; see also Serrano v. Unruh (1982) 32 Cal.3d 621.) Even if a statute does not expressly authorize attorney fees on appeal, a successful party may recover fees incurred on appeal when the statute expressly grants such an award in the trial court, unless the statute specifically provides otherwise. (Morcos v. Board of Retirement (1990) 51 Cal.3d 924.) However, where a statute does not permit recovery of attorney fees as costs in the trial court, they necessarily are not awardable on appeal. (Imperial Bank v. Pim Electric, Inc. (1995) 33 Cal.App.4th 540.)

Fees on Underlying Action

Canterman seeks \$353,682 in attorney's fees for the trial-court litigation consisting of a lodestar of \$337,282 plus \$16,400 for preparing the fee motion.

Lodestar

Canterman requests a lodestar in the amount of \$337,282.

The court has reviewed the declarations and billing statements provided. Defendant's counsel, Michael Wallenstein, declares that his hourly rate in this matter was \$500/hr from 2018 to 2021. (Wallenstein Decl. ¶ 5) Counsel further sets forth his education and experience warranting the hourly rate. (See Wallenstein Decl. ¶¶ 3-5) Defendant's counsel, Robert Christensen, declares that his hourly rate in this matter was \$250/hr from 2020 to 2021. (Christensen Decl. ¶ 10) Counsel further sets forth his education and experience warranting the hourly rate. (See Christensen Decl. ¶¶ 8-9) Counsel also seek a \$215/hr rate for paralegal Kristin Manning. The Court finds the rates to be reasonable.

“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.” (Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association (2008) 163 Cal.App.4th 550, 564.)

Elusive challenges certain hours as time spent on unrelated matters. Here, the Opposition identifies specific entries – 1.5 hours on April 23, 2020 for a claim against a neighbor, 1.3 hours on April 10, 2020 for a criminal complaint concerning a street repair, and ten dated entries in 2019-2020 totaling 10.3 hours for the separate writ-of-mandate proceeding between Elusive and the City of Los Angeles – with dates, hours, and citations to the invoices. (Giller Decl. ¶¶ 5-6.) These 13.1 hours, billed at \$500, are not part of the easement defense and are readily severable. The Court excludes them, reducing the lodestar by \$6,550.

Elusive's remaining objections are general arguments of duplication and excessiveness. However, due to the numerous redactions of the time records, the Court agrees that it cannot deduce, approximately how much time has been incurred on various matters such that the amount of requested fees is "reasonable."

Further, from the records that are discernable, the Court agrees that various entries appear to be excessive. "When a voluminous fee application is made the court may make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure" (Morris v. Hyundai Motor Am. (2019) 41 Cal.App.5th 24, 40, quoting Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41 [cleaned up].)

Upon review of the billing records, the Court agrees that some of the hours incurred are unreasonable. The Court will adopt an "across-the-board percentage cut" of 20% here as to Counsel's entries.

Accordingly, after the reduction, the Court awards a total lodestar in the amount of \$264,585.60.

Fees on Fee Motion

The fees incurred in preparing a fee application are themselves recoverable. (Bruckman v. Parliament Escrow Corp. (1987) 190 Cal.App.3d 1051, 1062.) The Court retains an independent obligation, however, to award only reasonable fees and may reduce a request that appears unreasonably inflated. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132; Chavez v. City of Los Angeles (2010) 47 Cal.4th 970, 990.)

The 46.9 hours claimed by Mr. Christensen for preparing this motion, and for anticipated reply and appearance, is excessive. This is a straightforward motion supported by billing records that counsel generated in the ordinary course of the representation. The tasks of compiling, categorizing, and redacting those records, while necessary, do not reasonably require nearly 47 hours of attorney time. The Court finds that 15 hours is a reasonable allocation for Mr. Christensen's work on this motion and reduces his time accordingly. Combined with the 9.5 hours reasonably claimed by Mr. Wallenstein, the Court awards \$8,500 for this component, rather than the \$16,400 requested.

Conclusion

For the foregoing reasons, Defendant Merek Canterman's motion for an award of attorney's fees in the underlying action is GRANTED in part. The Court awards a lodestar of \$264,585.60; and \$8,500 for the reasonable expenses of preparing the fee motion.

Accordingly, the Court awards Defendant Merek Canterman a total of \$273,085.60 in attorney's fees against Plaintiff Elusive 8307, LLC.

Fees on Appeal

Canterman seeks \$45,810 for attorney's fees on appeal, consisting of a lodestar of \$38,010 for the appeal; and \$7,800 for preparing the fee motion.

Timeliness

A motion to claim contractual attorney's fees on appeal must be served and filed within the time for filing the memorandum of costs on appeal – i.e., within 40 days after issuance of the remittitur. (Cal. Rules of Court, Rule 3.1702(c)(1); Rule 8.278(c)(1).)

The remittitur in No. B321096 issued April 4, 2024, and Canterman filed his original motion for appellate fees on May 14, 2024, the fortieth day. The motion is timely.

Lodestar

Canterman requests a lodestar in the amount of \$38,010 in attorney fees.

The court has reviewed the declaration and billing statements provided. Defendant's counsel, Robert Christensen, declares that his hourly rate for the appeal was \$300/hr from 2022 to 2024. (Christensen Decl. ¶ 7) Counsel further sets forth his education and experience warranting the hourly rate. (See Christensen Decl. ¶¶ 5-6) The Court finds the rate to be reasonable.

Defendant requests fees for 126.7 hours of time spent on the appeal.

Here, Elusive specifically challenges 9.8 hours of oral-argument preparation for an argument at which each side was limited to ten minutes. (Giller Decl. ¶ 7; Mot. Exh. 3.) The Court agrees this is excessive. On independent review of the billing records, the Court further finds that certain entries retraced factual and legal ground already developed in the trial court, resulting in some redundancy.

"When a voluminous fee application is made the court may make across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure." (Morris v. Hyundai Motor Am. (2019) 41 Cal.App.5th 24, 40, quoting Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 41 [cleaned up].)

The Court will adopt an across-the-board cut of 10% to the appellate lodestar. The Court applies a smaller reduction than in the underlying action because the appellate invoices are more fully described and the work more clearly necessary.

After the reduction, the Court awards an appellate lodestar of \$34,209.

Fees Motion

Mr. Christensen claims 26 hours consisting of 19 hours to prepare this motion and 7 hours for anticipated reply and appearance. (Christensen Decl. ¶ 18.) That is excessive. This is a narrow, single-issue motion for appellate fees; as Elusive points out, the supporting memorandum runs fourteen pages but, after explaining the right to recover appellate fees, largely restates the procedural history and the same authorities set out in the underlying fee motion. (Giller Decl. ¶¶ 8-9.) The Court finds that 12 hours is a reasonable allocation and awards \$3,600 for this component, rather than the \$7,800 requested.

Conclusion

Defendant Merek Canterman's motion for an award of attorney's fees on appeal is GRANTED in part. The Court awards an appellate lodestar of \$34,209.00 and \$3,600.00 for the reasonable expenses of preparing the fee motion, for a total of \$37,809.00.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.